

25STCV30092 25STCV30092

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-07

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Defendant County

of Los Angeles (sued as itself and LAC+USC Medical Center) demurs to the First Amended Complaint filed by Plaintiff Mauv Lay.

The

Court SUSTAINS Defendant County of Los Angeles (sued as itself and LAC+USC Medical Center)'s demurrer WITHOUT LEAVE TO AMEND.

Defendant County

of Los Angeles (sued as itself and LAC+USC Medical Center) is DISMISSED.

Background

This is a

medical malpractice case. On October 15, 2025, Plaintiff Mauv Lay ("Plaintiff") filed this action against Defendants County of Los Angeles, sued as itself and LAC+USC Medical Center ("Defendant"), and Marc David Makhani, M.D., alleging causes of action for general negligence and medical malpractice.

On February 10, 2026,

Defendant's demurrer to the complaint was sustained with leave to amend.

On February 13, 2026,

Plaintiff filed the first amended complaint ("FAC") against Defendants, alleging a cause of action for medical malpractice.

Plaintiff

alleges that Defendant Dr. Marc Makhani committed medical malpractice during a colonoscopy performed on Plaintiff on March 1, 2023 at LAC+USC Medical Center. Plaintiff alleges that a colon perforation had occurred after the colonoscopy, requiring surgery to remove 14 centimeters of Plaintiff's colon.

On March 17, 2026, Defendant filed a demurrer.

On April 2, 2026, Plaintiff filed an Opposition. On April 10, 2026, Defendant filed a Reply.

Request for Judicial Notice

Defendant

requests judicial notice of: (1) Plaintiff's Government Tort Claim dated 8/11/23; and (2) Defendant's Rejection Letter dated 9/13/23, including proof of service on the same date.

The Court may take

judicial notice of records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States. (Evid. Code § 452 subd. (d).) The Court may also take judicial notice of "Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." (Evid. Code § 452 subd. (c).)

The requests are

unopposed and granted. (See Evid. Code § 452(c)-(d).) The court notes it is not taking judicial notice of any testimony, but rather is taking judicial notice of the filing and contents of the government claim. (Gong v. City of Rosemead (2014) 226 Cal.App.4th 363, 369-70 n. 1; see also Fowler v. Howell (1996) 42 Cal.App.4th 1746, 1752-53; see also Vann v. City and County of San Francisco (2023) 97 Cal.App.5th 1013, fn. 2 [denial of claim is matter subject to judicial notice].)

Legal Standard

A demurrer for sufficiency tests

whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747 (Hahn).) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968,

994.)

"A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Proc. §§ 430.30, 430.70.) "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." (Hahn, supra, 147 Cal.App.4th at p. 747.)

At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

Discussion

Untimely

Filing of Lawsuit under Government Code section 945.6(a)(1) After Rejection of Claim

"[T]he California

Tort Claims Act ... establishes certain conditions precedent to the filing of a lawsuit against a public entity. As relevant here, a plaintiff must timely file a claim for money or damages with the public entity. [Citation.] The failure to do so bars the plaintiff from bringing suit against that entity." (State of California v. Superior Court (2004) 32 Cal.4th 1234, 1237.) "[F]ailure to allege facts demonstrating or excusing compliance with this claim presentation requirement subjects a complaint to a general demurrer." (Ibid.)

Government Code section

945.5 provides, "No suit for damages may be maintained against a public entity unless the claim has been presented to it."

Government Code section

945.6 provides in relevant part:

(a) Except as provided in Sections 946.4 and 946.6 and subject to subdivision (b), any suit brought against a public entity on a cause of action for which a claim is required to be presented in accordance with Chapter 1 (commencing with Section 900) and Chapter 2 (commencing with Section 910) of Part 3 of this division must be commenced:

(1) If written notice is given in accordance with Section 913, not later than six months after the date such notice is personally delivered or deposited in the mail.

...

“Government

Code § 945.6 is a statute of limitation.” (Cole v. Los Angeles Unified School Dist. (1986) 177 Cal.App.3d 1, 3; see also Dowell v. Contra Costa County (2013) 928 F.Supp.2d 1137, 1152 [“Under § 945.6, if the board delivers written notice of its decision to the complainant, the complainant has six months to file a civil suit ... This functions as a statute of limitations.”].) “It is well established by case law that the six-month limitation period in Government Code section 945.6 starts to run when the notice of rejection has been either personally served or deposited in the mail.” (Cole, supra, 177 Cal.App.3d at 4.)

“[T]he proper

filing of a claim against the public entity is a condition precedent to action against the employees.” (Moyer v. Hook (1970) 10 Cal.App.3d 491, 492 (citing Gov. Code, § 950.2, and Law Revision Commission comments thereon).)

The judicially noticeable

evidence establishes that Plaintiff presented a claim for injuries concerning the underlying incident to Defendant on August 11, 2023, and that Defendant mailed a notice of rejection on September 13, 2023. (Request for Judicial Notice Exhs. 1-2.) Consequently, Plaintiff was required to file this action not later than six months after the notice of rejection was deposited in the mail. (Gov. Code § 945.6(a)(1); see also Cole, supra, 177 Cal.App.3d at 4 [“It is well established by case law that the six-month

limitation period in Government Code section 945.6 starts to run when the notice of rejection has been either personally served or deposited in the mail and the time is not extended five additional days by Code of Civil Procedure Section 1013.”].)

The six-month limitation period of Government Code § 945.6 means six calendar months, or 182 days, whichever is longer. (*Gonzales v. County of Los Angeles* (1988) 199 Cal.App.3d 601, 603.) In this case, 182 days or six months after September 13, 2023, was around March 2024. However, Plaintiff filed this complaint against Defendant October 2025, well past the sixth-month limitation.

The statute of limitations imposed by section 945.6 is mandatory and must be strictly complied with. (*Cole, supra*, 177 Cal. App. 3d at 5.) If the claimant fails to commence an action within the 6-month time period prescribed by section 945.6, the court is without jurisdiction to grant relief, and dismissal of the action is required. (*Id.*) As such, the Court is without jurisdiction to grant Plaintiff relief.

Plaintiff argues he did not receive the September 13, 2023 rejection letter. However, it is well established by case law that the six-month limitation period in Government Code section 945.6 starts to run when the notice of rejection has been either personally served or deposited in the mail.” (*Cole, supra*, 177 Cal.App.3d at 4.) As the proof of service in the judicially noticeable document shows that the notice of rejection was deposited in the mail on September 13, 2023, the six-month limitation began to run on that date and Plaintiff’s actual receipt is not relevant to the determination.

Defendant’s demurrer is therefore SUSTAINED.

The burden is on Plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349; *Hendy v. Losse* (1991) 54 Cal.3d 723, 742.) In this case, Plaintiff does not make any showing as to how the above defects can be cured. Therefore, the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.